

TENTATIVE RULING

Justin Abney
v.
Coastal Tractor
24CV002152

Plaintiff's Motion for Preliminary Approval of Class Action and PAGA Settlement

Hearing Date: July 31, 2026 (continued from April 24, 2026)

Plaintiff Justin Abney's ("Plaintiff") Motion for Preliminary Approval of the Class Action and Private Attorneys General Act ("PAGA") settlement is **GRANTED**. The supplemental documents address the issues identified by the Court's previous order. In their supplemental filing, the parties have (1) agreed to designate the Center for Community Advocacy as the cy pres beneficiary, (2) corrected the Class Period to May 24, 2020, through January 26, 2026, (3) amended the Class Notice to state that the funding of the Gross Settlement Amount is due 14 days after the Effective Date, (4) estimated that costs total \$16,398.67, (5) capped costs at \$20,000, (6) provided a copy of the Spanish version of the Class Notice, and (7) represented to the Court that they have solicited bids from other potential administrators. Therefore, the Court finds that the settlement between Plaintiff and Defendant Coastal Tractor is fundamentally fair, adequate, and reasonable. [*Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801-1802; *Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 130.]

The Court reiterates that Plaintiff's request for a \$7,500 representative service fee exceeds the typical \$5,000 award in Monterey County. By the time of the Final Approval hearing, the Court can make a final decision on whether an award of \$7,500 is justified and whether the request should be granted.

The case is scheduled for a Motion for Final Approval of the Class Action and PAGA Settlement on **March 26, 2027**, at 8:30 a.m., unless the parties agree to a different date. Any additional filings, including those addressing the representative service fee, must be filed and served 16 court days before the hearing. As a result of this ruling, the Further Case Management Conference scheduled for July 31, 2026, is **CONTINUED** to March 26, 2027, to align with the Final Approval hearing. The Court will complete and sign the Proposed Order, lodged on July 17, 2026, accompanying Plaintiff's supplemental filing.

NOTE RE TENTATIVE RULING

This tentative ruling becomes the court's order, and no hearing shall be held unless one of the parties contests it by following Rule 3.1308 of the California Rules of Court and Monterey County Local Rule 7.9. Those parties wishing to present an oral argument must notify all other parties and the Court no later than 4:00 p.m. on the court day before the hearing; otherwise, **NO ORAL ARGUMENT WILL BE PERMITTED, AND THE TENTATIVE RULING WILL BECOME THE ORDER OF THE COURT AND THE HEARING VACATED**. You must notify the court by [email](#) or by calling the Calendar Department at 831-647-5800, extension 3040, before 4:00 p.m. on the court day before the hearing.